

SENATE FLOOR VERSION

February 23, 2026

SENATE BILL NO. 2169

By: Deevers, Prieto, and
Grellner of the Senate

and

West (Rick) and Woolley of
the House

An Act relating to invasive woody species; creating the Oklahoma Invasive Woody Species Stewardship for State-Leased Lands Act; providing short title; defining terms; authorizing the Commissioners of the Land Office to address invasive woody species; prohibiting additional state resources to be used outside the scope of this act; providing for promulgation of rules; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1098 of Title 64, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Oklahoma Invasive Woody Species Stewardship for State-Leased Lands Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1099 of Title 64, unless there is a duplication created in numbering, reads as follows:

1 A. As used in this act, "invasive woody species" means a native
2 or non-native tree or shrub species that threatens and causes harm
3 to the environment, water resources, or economy. Invasive woody
4 species include, but are not limited to, *Juniperus virginiana*
5 (Eastern Redcedar), *Juniperus scopulorum* (Rocky Mountain juniper),
6 *Juniperus monosperma* (oneseed juniper), and *Tamarix ramosissima*
7 (salt cedar), and is consistent with "Harmful woody species" as used
8 and defined in the Terry Peach North Canadian Watershed Restoration
9 Act, codified in Title 27A, Section 3-8-102(2).

10 B. As established by the Oklahoma Constitution, the
11 Commissioners are responsible for the management of the permanent
12 school fund and the management of trust assets for the exclusive
13 purpose of providing maximum benefits to current and future
14 beneficiaries. Invasive woody species threaten to, and have caused
15 harm to, the environment, water resources, and economy, including
16 having caused harm to and devaluing trust assets and the permanent
17 school fund. Invasive woody species are likely to cause further
18 harm and further devalue to Commission trust assets of the permanent
19 school fund. To protect and maintain the value of trust assets of
20 the permanent school fund, and in order to manage trust assets for
21 the benefit of current and future beneficiaries, the Commissioners
22 are hereby authorized to remove and manage Invasive woody species as
23 described in this act.

1 C. By December 15 of each year the Commission shall identify
2 and prioritize trust lands that have been harmed and devalued by
3 Invasive woody species and shall submit a management plan to the
4 Oklahoma Conservation Commission outlining the strategy it intends
5 to employ for the removal and ongoing maintenance of Invasive woody
6 species on such trust lands.

7 D. The Commission is specifically authorized to:

8 1. Enter into programs run by, and coordinate with, the
9 Oklahoma Conservation Commission for the removal and management of
10 Invasive woody species;

11 2. Enter into programs run by, and coordinate with, other state
12 or federal agencies for the removal and management of Invasive woody
13 species;

14 3. Enter into programs run by, coordinate with, or contract
15 with as vendors, entities lawfully engaging in proscribed burns for
16 the removal and management of Invasive woody species;

17 4. Contract with vendors for the removal and management of
18 Invasive woody species;

19 5. Contract with its lessees for the removal and management of
20 Invasive woody species; and

21 6. Engage in any other lawful activity for the removal and
22 management of Invasive woody species.
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1 E. By February 15 each year the Commission shall submit a
2 report to the Legislature detailing the actions taken and the
3 progress made under the requirements of this act.

4 F. The Commission is authorized to use up to One Million
5 Dollars (\$1,000,000.00) each year, as determined and approved by the
6 Commissioners, to effectuate the provisions of this act. No
7 additional state resources shall be allocated to the Commission to
8 effectuate the provisions of this act; however, the Commission may
9 receive state resources through coordination with the Oklahoma
10 Conservation Commission, or other state agency, in effectuating the
11 provisions of this act.

12 G. The Commissioners of the Land Office shall promulgate any
13 rules necessary to implement the provisions of this act.

14 SECTION 3. This act shall become effective November 1, 2026.

15 COMMITTEE REPORT BY: COMMITTEE ON AGRICULTURE AND WILDLIFE
16 February 23, 2026 - DO PASS
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